

CREDIT REPAIR SERVICES AGREEMENT

(this agreement is called this "Agreement")
 entered into between
Letsatsi Finance and Loan (Pty) Ltd.
 (called "Letsatsi" in this Agreement)
 and

Customer Name:	<u>Stephen Mbulukani</u>		
	(called "the Customer", "Me", "My" or "I" in this Agreement)		
Customer's ID Number:	<u>8802075746082</u>	Customer's cell phone number:	<u>0674341218</u>

My Physical Address:

My current physical address, and the address that I choose as My service address, is: <u>16003 Ext 24 Etwatwa East Daveon Ekurhuleni 1819</u> (That address is called "My Domicilium Address" in this Agreement.)
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My Employer Details:

Employer/Company Name:	<u>Ekurhuleni</u>
Physical Address:	<u>101 Pmt Bag x66 Benoni 1500</u>
Employee Salary Pay Date:	<u>25th</u>

The Details Of My Bank Account are set out in Section B of the document that is attached at the back of this Agreement under the heading "Schedule 4". That bank account is called "My Bank Account" in this Agreement.

My Credit Check and Credit Report

I have given Letsatsi consent to do a credit check / credit enquiry in respect of Me.

A copy of the credit report in respect of Me is one of the documents that I had to provide to Letsatsi in accordance with the list that is attached at the back of this Agreement under the heading "Schedule 1". That credit report is called the "Credit Report" in this Agreement.

Here is a table (called the "Credit Report Table" in this Agreement) that sums up what the Credit Report shows in respect of Me:

Credit Report item	Yes	No	Detail	Must Letsatsi Repair This?
I am under administration				
I am under debt review	☒			
I have the following judgments against Me				
I have the following payment defaults against Me				
I have the following garnishee order/s against Me				

The Fees that I must pay under this Agreement

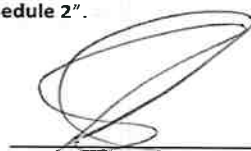
What I have instructed Letsatsi in this Agreement to do on My behalf (in other words, in My place) is called "the Services" in this Agreement.

The money that I have to pay to Letsatsi in return for Letsatsi having fully provided the Services to Me (or for Letsatsi having gotten someone else to fully provide the Services to Me), and thus for the relevant Intended Outcomes (as "Intended Outcome" is detailed later on in this Agreement) having been achieved is called the "Fees" in this Agreement.

I can choose to pay the relevant Fees to Letsatsi:

- In full in cash once-off once the relevant Services component/s have been fully provided to Me and the relevant Intended Outcome/s (as "Intended Outcome" is detailed later on in this Agreement) have been achieved (called the "1 Instalment" in this Agreement); or
- Over 6 months once the relevant Services component/s have been fully provided to Me and the relevant Intended Outcome/s (as "Intended Outcome" is detailed later on in this Agreement) have been achieved (called the "6 Instalments" in this Agreement); or
- Over 9 months once the relevant Services component/s have been fully provided to Me and the relevant Intended Outcome/s (as "Intended Outcome" is detailed later on in this Agreement) have been achieved (called the "9 Instalments" in this Agreement).

I choose to pay the Fees to Letsatsi in the way that the boxes are ticked in the table that is attached at the back of this Agreement under the heading "Schedule 2".



 Signed by the Customer



 Signed on behalf of Letsatsi

What this Agreement consists of

This Agreement includes all of the schedules to this Agreement and the documents headed "Schedule 1" to "Schedule 7" also form part of this Agreement.

Documents and Information that I must provide to Letsatsi

Letsatsi can only properly provide the Services to Me if I am honest with Letsatsi and if I provide Letsatsi with all of the information and documents that Letsatsi asks of Me. The document that is attached at the back of this Agreement under the heading "Schedule 1" has a list of the documents and information that I must provide to Letsatsi for the Services Components. Letsatsi cannot try to achieve the Intended Outcomes unless I have provided all of those documents and that information to Letsatsi.

The Services that I will receive under this Agreement

Where a right hand box in the Credit Report Table has been ticked in respect of Me because:

- I am under administration, I instruct Letsatsi to take (on My behalf, in other words, in My place) all relevant, reasonable and lawful steps to try to take Me out of administration.
- I am under debt review, I instruct Letsatsi to take (on My behalf, in other words, in My place) all relevant, reasonable and lawful steps to try to take Me out of debt review.
- I have the judgment/s set out in the Credit Report Table against Me, I instruct Letsatsi to take (on My behalf, in other words, in My place) all relevant, reasonable and lawful steps to try to end those judgments against Me.
- I have the payment default/s set out in the Credit Report Table against Me, I instruct Letsatsi to take (on My behalf, in other words, in My place) all relevant, reasonable and lawful steps to try to end those payment defaults against Me.
- I have the garnishee order/s set out in the Credit Report Table against Me, I instruct Letsatsi to take (on My behalf, in other words, in My place) all relevant, reasonable and lawful steps to try to end those garnishee orders against Me.

Each separate item of the Services that is ticked in the Credit Report Table is called a "Services Component" in this Agreement. The result that I have instructed Letsatsi to try to achieve in respect of a particular Services Component is called the "Intended Outcome" in this Agreement.

If Letsatsi gives Me a written notice, that has been signed by a director or manager of Letsatsi on behalf of Letsatsi, in which Letsatsi:

- confirms to Me that the relevant Services in respect of the one or more Services components listed in that notice have been fully performed and the Intended Outcomes in respect of those Services Components have been achieved; and
- sets out the broad steps and actions that it, or its Sub-Contractors and/or Attorneys, have taken so that those Services Components have become fully performed and a confirmation that the Intended Outcomes have been achieved.

then that notice will, on the face of it, be proof that those Services Components have been so fully performed and those Intended Outcomes have been achieved. If I do not agree that those Services Components have been so fully performed and those Intended Outcomes have been achieved, I am welcome to inspect Letsatsi's file in respect of Me during normal South African business hours at Letsatsi's head office within 7 business days after the date of that notice so that I can check for Myself what Services Components have been provided to Me and what Intended Outcomes have been achieved. If I do not so inspect the file, or if after I have so inspected the file I still do not agree that those Services Components have been fully performed and those Intended Outcomes have been achieved, then I am free to so disagree that those Services Components have been fully performed and those Intended Outcomes have not been achieved but then I will have to prove that those Services Components have not been fully performed and that those Intended Outcomes have not been achieved, Letsatsi will not have to prove that those Services Components have been fully performed and those Intended Outcomes have been achieved.

This clause is called a "face value proof" clause. That is so because such a written notice given by Letsatsi to Me will, on the face of it, be proof that the Services Components stated in that notice have been so fully performed and those Intended Outcomes have been achieved.

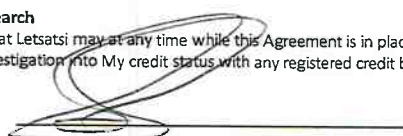
However, such a notice is not final and binding proof that the Services Components stated therein have been so fully performed and that the Intended Outcomes have been achieved – I can still prove that the notice is not correct and that the Services Components stated in the notice have not actually been so fully performed and that those Intended Outcomes have not been achieved.

The effect of this clause is that if Letsatsi give such a notice to Me, Letsatsi will not have to prove that the Services Components concerned have been fully performed and what Intended Outcomes have been achieved. Instead, if I disagree with the notice I will have to prove that the Services Components concerned have not been fully performed and that those Intended Outcomes have not been achieved

In legal terms this means that once Letsatsi has given such a notice to Me, I carry the onus or burden of proving that the notice is incorrect – Letsatsi does not carry the onus or burden of having to prove that the Services Components stated in that notice have been fully performed and that the Intended Outcomes have been achieved.

Credit Search

I agree that Letsatsi may at any time while this Agreement is in place perform a credit search or a credit investigation into My credit status with any registered credit bureau, court or other entity.


Signed by the Customer

I agree that Letsatsi may at any time while this Agreement is in place monitor My payment behaviour by researching My credit record or credit status at any registered credit bureau, court or other entity. I consent that Letsatsi may at any time while this Agreement is in place use any information that it obtains from performing a credit search or credit investigation in respect of Me to provide the Services. I consent that Letsatsi may at any time while this Agreement is in place use any information that it obtains by researching My credit record to provide the Services.

I agree that if an Intended Outcome is achieved, Letsatsi, any Sub-Contractor (as "Sub Contractor" is defined later on in this Agreement or Attorney (as "Attorney" is defined later on in this Agreement) may notify all relevant credit bureaus and other relevant institutions of that change in My credit history and My credit status.

Some of the things I must do in terms of this Agreement

- I must comply with all instructions given to Me by Letsatsi in respect of or relating to the Services.
- I must provide Letsatsi with all information that Letsatsi requests from Me.
- I must make sure that there is always enough money in My Bank Account so that when I have to pay any Chosen Fees (as "Chosen Fees" is defined later on in this Agreement) to Letsatsi in terms of this Agreement, those Chosen Fees (as "Chosen Fees" is defined later on in this Agreement) can and will be paid by way of the Debit Order.

My consent that Letsatsi may disclose certain of My information to other persons or entities

I consent that Letsatsi may, insofar as the law allows it to do so, receive and disclose My personal information, documents, credit profile information and/or any other credit information from or to:

- any credit providers, credit bureaus, credit reporting agencies, courts or other relevant persons or entities; and
- any law enforcement agencies that require the information for the prevention or investigation of criminal activities.

Letsatsi can act on My behalf and Letsatsi can instruct others to act on My behalf.

Letsatsi will provide the Services on My behalf (in other words, in My place). Letsatsi can in My name and in My place take any steps and do anything that Letsatsi thinks is relevant, reasonable and lawful to try to achieve the Intended Outcomes. Letsatsi may, on My behalf, instruct other persons or entities (those persons or entities are called the "Sub-Contractors" in this Agreement) to provide some or all of the Services on My behalf. The Sub-Contractors may also, on My behalf, instruct other persons or entities (those persons or entities are called the "Attorneys" in this Agreement) to provide some or all of the Services on My behalf.

The Sub-Contractors and the Attorneys can in My name and in My place take any steps and do anything that they think is relevant, reasonable and lawful to try to achieve the Intended Outcomes.

To make these instructions work, I have signed:

- A "power of attorney" in favour of Letsatsi. A copy of that power of attorney is attached at the back of this Agreement under the heading "Schedule 5".
- A "power of attorney" in favour of Zenowethu Credit Repair (Pty) Ltd. (Zenowethu Credit Repair (Pty) Ltd. is called "Zenowethu" in this Agreement). Zenowethu is one of the Sub-Contractors. A copy of that power of attorney is attached at the back of this Agreement under the heading "Schedule 6".

The way that the Fees will be paid and the Debit Order

The way that I have chosen to pay the Fees to Letsatsi is called the "Chosen Fees" in this Agreement.

The Chosen Fees will, once the Services have been fully provided and the Intended Outcomes has been achieved, be paid directly from My Bank Account into Letsatsi's bank account in terms of the "Debit Order Authorisation" of which a copy is attached at the back of this Agreement under the heading "Schedule 4". (That debit order authorisation is called the "Debit Order" in this Agreement). This means that when the dates on which I must pay a particular Chosen Fee to Letsatsi arrive, that Chosen Fee will automatically be taken from My Bank Account and will be transferred to Letsatsi's bank account.

When I "authorise" Letsatsi or someone else to do something (that "to do something" is called an "Action" in this Agreement), I agree that Letsatsi or that someone else may take that particular Action.

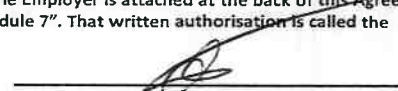
I authorise Letsatsi to:

- issue and deliver debit order payment instructions to My bank for the collection of the Chosen Fees from My Bank Account;
- deduct (or let my bank deduct) the Chosen Fees automatically from My Bank Account and transfer it to Letsatsi's bank account in terms of the Debit Order; and
- access and monitor My Bank Account and any movements on it. I agree that Letsatsi and anyone authorised by Letsatsi can access and monitor My Bank Account.

If, for whatever reason, any Chosen Fees have become payable under this Agreement but are not paid by Me to Letsatsi under the Debit Order, I must still pay those Chosen Fees to Letsatsi.

My consent that my employer may deduct the Chosen Fees from my salary and pay it to Letsatsi.

I have authorised My current employer (that current employer is called the "Employer" in this Agreement) to deduct the Chosen Fees, as and when I have to pay them to Letsatsi, from My salary and to pay those Chosen Fees (so deducted from my salary) to Letsatsi. (Those Chosen Fees are called the "Credit Repair Repayment Schedule Details amounts" in this Agreement). A copy of that written authorisation by Me to the Employer is attached at the back of this Agreement under the heading "Schedule 7". That written authorisation is called the


Signed on behalf of Letsatsi

"Authorisation" in this Agreement.

If:

- My employment with the Employer ends for any reason; and
- Letsatsi lets me know in writing that I must immediately pay to Letsatsi the total amount of all the then unpaid Credit Repair Repayment Schedule Details amounts, up to (and thus limited to, the total amount that is owing by the Employer to Me from which the Employer can make such a deduction) (that limited amount is called the "Final Deduction" in this Agreement),

then:

- I must immediately pay the "Final Deduction" to Letsatsi; and
- the Employer can, under the Authorisation, deduct the Final Deduction from the total amount that is owing by the Employer to Me and pay it to Letsatsi in order to settle my obligation to pay the Final Deduction to Letsatsi.

This clause is called an "acceleration" and "consent to deduction" clause.

This clause means that:

- if My employment with the Employer ends for any reason; and
- Letsatsi gives Me a written notice as described in this clause, then:
- I must immediately pay the Final Deduction (as described in this clause) to Letsatsi; and
- the Employer can deduct the Final Deduction from the total amount that is owed by the Employer to Me and pay it to Letsatsi in settlement of My obligation to pay the Final Deduction to Letsatsi.

If I do not pay the Chosen Fees

- (1) If (a) I do not pay any of the Chosen Fees at any time that I have to pay those Chosen Fees to Letsatsi (those Chosen Fees that I have not paid when I should have are called the "Overdue Fees" in this Agreement) and (b) Letsatsi has given a written notice to Me in which Letsatsi told Me that I have not paid those Overdue Fees and that I must pay these Overdue Fees to Letsatsi within 20 (twenty) business days after the date of that written notice and (c) I have not paid those Overdue Fees to Letsatsi within those 20 (twenty) business day, then the following will apply:

- If Letsatsi so lets Me know, I must immediately pay the full outstanding amount of the Overdue Fees to Letsatsi.
- Letsatsi can also claim from Me the damages that it has suffered as a result of My having breached the Agreement because I did not pay to Letsatsi any Overdue Fees when I should have paid those Overdue Fees to Letsatsi under this Agreement.

- (2) Also, in addition to clause (1) above (in other words on top of clause (1) above),

- if I do not pay any of the Chosen Fees at any time that I have to pay those Chosen Fees to Letsatsi (those unpaid Chosen Fees that I have not paid when I should have are called the "Arrear Fees" in this Agreement) and,
- if Letsatsi has given Me a written notice saying that I must pay interest on those Arrear Fees,

then I must pay to Letsatsi interest on those Arrear Fees from the date on which I should have paid those Arrear Fees to Letsatsi under this Agreement until the day on which I actually pay those Arrear Fees to Letsatsi. If Letsatsi has given such a written notice to Me, then I must so pay interest on those Arrear Fees at the maximum interest rate that Letsatsi is entitled to receive on those Arrear Fees from Me under the National Credit Act, No. 34 of 2005 and the Regulations made under that Act. As at the date on which I sign this Agreement that maximum interest rate is 2% per month but if the applicable maximum interest rate under the National Credit Act and its Regulations changes, then the interest rate at which I must pay that interest to Letsatsi will automatically change to the changed applicable maximum interest rate under the National Credit Act and its Regulations. If, however, Letsatsi does not give Me such a written notice (Letsatsi can choose whether or not it will give Me such a written notice), then I do not have to pay that interest on the Arrear Fees.

- (3) I consent in terms of section 45 of the Magistrate's Court Act, No. 32 of 1944 that any legal proceedings by Letsatsi against Me in respect of or relating to this Agreement may be instituted by Letsatsi against Me in the Magistrate's Court of any district that has jurisdiction in terms of section 28 of that Act.

- (4) If a party (that party is called the "Breaching Party" in this Agreement) breaches this Agreement, then that Breaching Party must pay to the other party to this Agreement (that party is called the "Innocent Party" in this Agreement) all reasonable costs of whatever nature (including legal costs calculated on the scale as between attorney and own client, disbursements and collection commission) incurred by the Innocent Party in exercising any remedy or taking any legal steps against the Breaching Party as a result of that breach.

What if an Intended Outcome is not achieved in respect of a particular Services Component?

Letsatsi will try very hard to achieve the Intended Outcomes. But Letsatsi does not control if the Intended Outcomes are achieved or not. Letsatsi does not promise or guarantee that the Intended Outcomes will be achieved. I must pay the Chosen Fees to Letsatsi once the Intended Outcome/s have been achieved.

My Waiver of Rights.

- If Letsatsi, any Sub-Contractor or any Attorney (those parties are together called the "Relevant Parties" in this Agreement) provide the Services in accordance with this Agreement (in other words, whatever the Relevant Parties concerned have done is what they are allowed to do under this Agreement), and
- as a result of what the Relevant Parties have so done in accordance with this Agreement, (a) I suffer any damages, or (b) anyone brings any claim against Me, or (c) I have to pay anything to anyone except to Letsatsi, or (d) I become liable to anyone or (e) anything else bad happens to Me (these results are together called the "Results" in this Agreement), I now in advance waive (in other words I now already give up and let go of) any claim that I may have or in the future get against any of the Relevant Parties because a Result has happened to Me.

This clause is called an "exclusion of liability" clause.

This clause means that:

- If the Relevant Parties only did what they were allowed to do under the Agreement and no Relevant Party did anything that it is not allowed to do under this Agreement;
- and as a result of that I have suffered a Result;
- then I will not be able to sue any of the Relevant Parties because a Result has happened to Me.

Warranties by Me

- I warrant (in other words, I promise as a legally binding promise) to Letsatsi that I have the necessary legal capacity to enter into this Agreement and that no court has declared Me mentally unfit.
- I warrant (in other words, I promise as a legally binding promise) to Letsatsi that My agreeing to pay the Chosen Fees to Letsatsi in the way set out in this Agreement will not make Me unable to pay any of my debts as and when I have to pay them in the future.

My and Letsatsi's Domicilium Addresses

I have chosen the physical address set out on the front page of this Agreement as My Domicilium Address.

I may change My Domicilium Address to any other physical address within the Republic of South Africa provided that that change will only take effect on Letsatsi 10 days after I have given written notice of that change to Letsatsi at Letsatsi's Domicilium Address. Letsatsi chooses as its service address the following physical address: 222 Rivonia Road, Unit F, 1st Floor, Morningside Close Office Park, Morningside Side, Sandton 2196 (That address is called "Letsatsi's Domicilium Address" in this Agreement). Letsatsi may change Letsatsi's Domicilium Address to any other physical address within the Republic of South Africa provided that that change will only take effect on Me 10 days after Letsatsi has given written notice of that change to Me at My Domicilium Address. All notices, legal documentation and court documents which in any way relate to this Agreement may be validly given, delivered and served to or on (a) Me at My Domicilium Address or (b) Letsatsi at Letsatsi's Domicilium Address.

Any notice given in terms of this Agreement must be in writing in order to be valid.

General

Invalidity: If any part of this Agreement is invalid or unenforceable, the rest of this Agreement will stay valid and enforceable and the invalid or unenforceable part of this Agreement will be deemed to have been deleted.

Entire Agreement: This Agreement contains the whole understanding of the parties regarding the matters that are dealt with in this Agreement.

No Representations: None of the parties may rely on any representation (in other words, anything that was said or written to that Party) which allegedly caused or encouraged that Party to enter into this Agreement unless that representation is recorded in this Agreement.

Variation, Termination and Waiver: This Agreement (including this particular part) can only be changed or ended voluntarily by both Parties if that change or end is made in a written document signed by both parties. A party will only have waived (in other words, have let go of) any of its rights under this Agreement if that party specifically waives that right in a written document and that party signs that written document.

Transfer: No party may transfer any of its rights or obligations under this Agreement unless the other party has consented to that transfer in a written document signed by that other party.

SIGNED at

edenvale

on

21 October

20

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the Customer

For and on behalf of:
Letsatsi Finance and Loan (Pty) Ltd.

SCHEDULE 1 – LIST OF DOCUMENTS THAT MUST BE PROVIDED TO LETSATSI

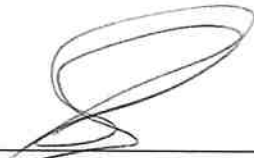
DOCUMENTS REQUIRED: CHECKLIST	✓	NOTES
Copy of Credit Report		
iD Document		
2 Latest Payslips		
3 Months Latest Bank Statements (Very Important)		
Signed Power of Attorney for LETSATSI		
Signed Power of Attorney for Zenowethu		

DETAILS OF ATTORNEYS FOR GARNISHEE ORDER		
You can get copies of the Garnishee Order from your Payroll Department		
Attorneys Company Name (1)		
Attorneys Contact Details (1)		
Attorneys Company Name (2)		
Attorneys Contact Details (2)		
Copy Of Garnishee Order		
Settlement Letters Of All Creditors		

DETAILS OF DEBT COUNSELLOR / ADMINISTRATOR	
Debt Review / Under Administration	
Company Name	
Contact Details	
List Of Creditors From Administrator	
Settlement Letters Of All Creditors	

Please ensure that you have all relevant documents before sending the applications

Client must get settlement letters from all institutions, especially Banks, Old Mutual & JDG


Signed by the Customer


Signed on behalf of Letsatsi

SCHEDULE 2 – REPAYMENT SCHEDULE

PAYROLL REPAYMENT AMOUNTS

The Fee in a ticked box becomes payable once the Services to which that Fee relates have been provided in full and the Intended Outcome in respect thereof has been achieved.

✓ Please tick the applicable box/es

	Services Component	1 Instalment	6 Instalments	9 Instalments	Instalments 1 / 6 / 9	Number of Cases	Monthly Instalments
EG.	SELECTED SERVICE e.g. To end the judgment against Me.	R2,800 once-off	R 466.67 per month	R 311.11 per month	6	2	2 x R300 = R600
1.	To end My being under administration.	R 5,200 once-off	R866.67 per month	R577.77 per month			
2.	To end My being under debt review.	R 4,950 once-off	R 825.00 per month	R550.00 per month			
3.	To end the judgment/s against Me.	R 2,800 once-off	R 466.67 per month	R 311.11 per month			
4.	To end the payment default/s against Me.	R 2,8800 once-off	R 466.67 per month	R 311.11 per month			
5.	To end the garnishee order/s against Me.	R 2,800 once-off	R 466.67 per month	R 311.11 per month			

CASH PAYMENTS: Account Name: Letsatsi Credit Repair, Bank: ABSA, Account Number: 4093287235

SCHEDULE 3 – REASONS

REASON TO HAVE MY ADMINISTRATION RESCINDED		✓
1.	I have paid up all my creditors in full	
2.	I am no longer over indebted	
3.	Other: (please specify)	

REASON TO HAVE MY DEBT REVIEW RESCINDED		✓
1.	I cannot find my Debt Counsellor	
2.	I don't know the Debt Counsellor who listed Me under debt review	
3.	I was not aware that I was going under debt review	
4.	I have paid up all my creditors in full	
5.	Other: (please specify)	

Signed by the Customer

Signed on behalf of Letsatsi

SCHEDULE 4 – THE DEBIT ORDER AUTHORISATION

Letsatsi Finance and Loan (Pty) Ltd.

Address of Beneficiary: 222 Rivonia Road, cnr Alon Road & Michelle Street, Unit F, Morningside Close Office Park, 1st Floor, Morningside

Postal Address: P O BOX 1207, Gallo Manor, 2052

Telephonic Contact Details: 011 802 4073

E-Mail: info@letsatsifinance.co.za

DEBIT ORDER AUTHORISATION

SECTION A – PAYER DETAILS:			
ID Number	9802075746082		
Name	Stephen Mbqulani		
Cell Number:	067 434 1218	Client Number:	207721

SECTION B – PAYER BANKING DETAILS:	
Name of Bank	Newbank
Bank Code	
Account Type	Current Account
Account number	1217315 268
Inscription on Bank Statement	

SECTION C – PAYMENT DETAILS:							
Amount as defined in Agreement excluding Arrears			Agreement Reference				
Repayment Amount			Number of Instalments				
Payment Cycle / Frequency							
				P	P		
Payment Streams		EDO		EFT		Both	

SECTION D – ACTIVE DATE: Three days after date of signature

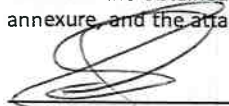
SECTION E – ACTION DATE: Variable to coincide with my salary /wage deposits

SECTION F – AUTHORIZATION

I hereby authorise **Letsatsi Finance and Loan (Pty) Ltd.** ("you" or "your") to issue and deliver debit order payment instructions to your banker for collection against my Account and Bank used by my employer to deposit my salaries / wages, which account may differ from the account specified above on condition that the sum of each payment instruction and frequency of payment requests will never exceed the obligations as agreed and defined in the Agreement specified.

My bank's participation in the relevant payment stream, the authentication mechanism used by Me and the relevant rules applicable to the payment streams will determine per repayment cycle the most suitable payment stream in order to fulfil the obligations as defined in the Agreement. My authorisation is subject thereto that the same payment instruction may never be presented simultaneously in more than one payment stream during the same repayment cycle or, if unpaid in a payment stream selected be represented in the same cycle in another payment stream. I can only service the obligations defined in here if the payment instructions are executed as close as possible to when I receive my salary or wages which dates vary from month to month, especially during December of each year. To curb against (1) unpaid bank charges (2) losing the benefits described in the Agreement quoted (3) incurring penalties due to non-payment; I explicitly authorise **Letsatsi Finance and Loan (Pty) Ltd.** to utilise the functionality of Tracking supported on the EDO Payment Streams especially after unsuccessful attempts on the EFT Payment Stream. Tracking supported on the EDO Payment Streams has been explained to Me and I acknowledge that my above-mentioned account will be interrogated for a defined period until this period has lapsed or until payment was received. I hereby agree that subsequent payment instructions will continue to be delivered in terms of the authority until all obligations have been paid. This authorisation will remain in force until cancelled by Me in writing. I hereby acknowledge that my bank will charge fees to my account as agreed with them once they process this instruction.

I foresee that I may change my bank and bank account particulars reflected in here, in which instance I will notify the beneficiaries specified, or any new beneficiary, should the Agreement be ceded or assigned to any third party. Should I however forget to notify you, or the assigned third party and if you or the assigned third party obtain my new bank particulars, on own account, this mandate will not lapse. This issued mandate will cover the obtained bank information, and you and the assigned third party may attach such new information, to this signed document as annexure, and the attached annexure must be read together with this mandate, by my new bank.


Signed by the Payer/Customer


Signed on behalf of Letsatsi

21/10/2024
Date

SCHEDULE 5 – POWER OF ATTORNEY IN FAVOUR OF LETSATSI

POWER OF ATTORNEY

I, the undersigned

NAME:	Stephen		
SURNAME:	Mbohukani		
IDENTITY NUMBER:	8802075746082		
PHYSICAL ADDRESS:	16003 ext 8 Ethwathwa 1519		
CELL NUMBER:	0674341218	WORK TELEPHONE NUMBER:	011 999

want Letsatsi Finance and Loan (Pty) Ltd. (that company is called "Letsatsi" in this Power of Attorney), and if applicable, also Letsatsi's sub-contractors (Letsatsi's sub-contractors are called "Contractors" in this Power of Attorney) and, if applicable, also those Contractors' sub-contractors (those Contractors' sub-contractors are called "Attorneys" in this Power of Attorney), to take and do all relevant, reasonable and lawful actions, steps and other things, and sign all relevant, reasonable and lawful documents, (those actions, steps, things and signing of documents are together called the "Authorised Actions" in this Power of Attorney) for and on my behalf (and thus in my place), in order to try to repair my credit record in the way/s set out in the Credit Repair Services Agreement between Letsatsi and Me (that agreement is called the "Agreement" in this Power of Attorney) and to achieve the Intended Outcomes (as the term "Intended Outcomes" is defined in the Agreement).

1. I nominate, appoint and authorise Letsatsi, with full power of substitution (in other words, Letsatsi can transfer the powers and authorities given to it in this Power of Attorney to someone else, such as to a Contractor) to be my agent, and in my name and place, and thus on my behalf, to take all of the Authorised Actions.
2. Without making the nomination, appointment and authority that I have given to Letsatsi under paragraph 1 of this Power of Attorney any narrower, I specifically authorise Letsatsi to, on my behalf (and thus in my name and place):
 - 2.1. issue and deliver debit order payment instructions to My bank for the collection of the Chosen Fees (as the term "Chosen Fees" is defined in the Agreement) from My Bank Account (as the term "My Bank Account" is defined in the Agreement);
 - 2.2. deduct (or let my bank deduct) the Chosen Fees (as the term "Chosen Fees" is defined in the Agreement) automatically from My Bank Account (as the term "My Bank Account" is defined in the Agreement) and transfer it to Letsatsi's bank account in terms of the Debit Order (as the term "Debit Order" is defined in the Agreement);
 - 2.3. access and monitor My Bank Account (as the term "My Bank Account" is defined in the Agreement) and any movements on it;
 - 2.4. take any steps and do anything that Letsatsi thinks is relevant, reasonable and lawful to try to achieve the Intended Outcomes (as the term "Intended Outcomes" is defined in the Agreement);
 - 2.5. instruct and authorise any Contractors to take any of the Authorised Actions on my behalf (and thus in my name and place);
 - 2.6. instruct and authorise any Contractors to, on my behalf (and thus in my name and place), take any steps and do, on my behalf (and thus in my name and place), anything that that Contractor thinks is relevant, reasonable and lawful to try to achieve the Intended Outcomes (as the term "Intended Outcomes" is defined in the Agreement); and
 - 2.7. instruct or authorise any Contractors to instruct and authorise any Attorneys to take, on my behalf (and thus in my name and place), any of the Authorised Actions and, on my behalf (and thus in my name and place), take any steps and do anything that the Attorney thinks is relevant, reasonable and lawful to try to achieve the Intended Outcomes (as the term "Intended Outcomes" is defined in the Agreement).
3. Without making the nomination, appointment and authority that I have given to Letsatsi under paragraphs 1 and 2 of this Power of Attorney any narrower, I specifically authorise Letsatsi:
 - 3.1. to create a credit profile of Me, including of my creditors, judgments, standing liabilities and my overall credit ratings and scoring;
 - 3.2. to engage with my creditors to determine and agree full and final settlement amounts;
 - 3.3. to receive certified balances of the amounts that I owe to my creditors;
 - 3.4. to request or otherwise obtain a report in respect of Me from any registered credit bureau;
 - 3.5. to institute any legal proceedings in my name so as to rescind any judgment or debt review order against Me;
 - 3.6. to nominate and instruct, on my behalf, any firm of attorneys to act as my attorneys in any of the legal proceedings set out in paragraph 3.5 of this Power of Attorney above;
 - 3.7. to receive, hold and deal with any amount received by Letsatsi on my behalf and to pay any of my creditors from that amount/s as Letsatsi believes is best;
 - 3.8. to request and obtain from my bank/s the bank statements for my bank accounts for the 90 days that end on the day that I sign this Power of Attorney;
 - 3.9. to perform, at any time while the Agreement is in place, a credit search or a credit investigation into my credit status with any registered credit bureau, court or other institution;
 - 3.10. to monitor, at any time while the Agreement is in place, my payment behaviour by researching my credit record or credit status at any registered credit bureau, court or other institution;
 - 3.11. to use, at any time while the Agreement is in place, any information that it obtains from performing a credit search or credit investigation in respect of Me to provide the Services (as the term "Services" is defined in the Agreement);
 - 3.12. to use, at any time while the Agreement is in place, any information that it obtains by researching my credit record to provide the Services (as the term "Services" is defined in the Agreement);
 - 3.13. if an Intended Outcome is achieved, to notify (or to tell any Contractor or Attorney to notify) all relevant credit bureaus and other relevant institutions of that change in my credit history and my credit status; and
 - 3.14. to, insofar as the law allows it to do so, receive and disclose my personal information, documents, credit profile information and/or any other credit information from or to:
 - 3.14.1. any credit providers, credit bureaus, credit reporting agencies, courts or other relevant persons or entities; and
 - 3.14.2. any law enforcement agencies that require the information for the prevention or investigation of criminal activities.
4. I can only cancel this Power of Attorney by giving a written notice to Letsatsi that I have cancelled this Power of Attorney.

Signed at edenvale on this the 21 day of October 2024

CUSTOMER: 

NAME: S. Mbohukani

AS WITNESS: 1. 

2. 

SCHEDULE 6 – POWER OF ATTORNEY IN FAVOUR OF ZENOWETHU

POWER OF ATTORNEY

I, the undersigned

NAME:	Stephen		
SURNAME:	Mbalukani		
IDENTITY NUMBER:	8802075746082		
PHYSICAL ADDRESS:	16003 ext 8 Ethwathwa 1519		
CELL NUMBER:	067 434 1218	WORK TELEPHONE NUMBER:	011 999

I want Zenowethu Credit Repair (Pty) Ltd. (that company is called "Zenowethu" in this Power of Attorney), and if applicable, also Zenowethu sub-contractors and/or other entities or persons instructed by Zenowethu on my behalf are called "Attorneys" in this Power of Attorney, to take all relevant, reasonable and lawful actions, steps and other things, and sign all relevant, reasonable and lawful documents, (those actions, steps, things and signing of documents are together called the "Authorised Actions" in this Power of Attorney) for and on my behalf (and thus in my place), in order to try to repair my credit record in the following way/s

Credit Record Repair Item	Yes?	No?	Details	Must ZENOWETHU try to repair this?
I am under administration				
I am under debt review	X			
I have the following judgments against Me				
I have the following payment defaults against Me				
I have the following garnishee orders against Me				

, and to try to achieve the particular repair results in respect of my credit record indicated in the table above (those results are called the "Intended Outcomes" in this Power of Attorney.

- I nominate, appoint and authorise Zenowethu with full power of substitution (in other words, Zenowethu can transfer the powers and authorities given to it in this Power of Attorney to someone else, such as to an Attorney) to be my agent, and in my name and place, and thus on my behalf, to take all of the Authorised Act
- Without making the nomination, appointment and authority that I have given to Zenowethu under paragraph 1 of this Power of Attorney any narrower, I specifically authorise Zenowethu to, on my behalf (and thus in my name and place):
 - access and monitor all of my bank accounts and any movements thereon;
 - take any steps and do anything that Zenowethu thinks is relevant, reasonable and lawful to try to achieve the Intended Outcomes;
 - instruct and authorise any Attorneys to take any of the Authorised Actions on my behalf (and thus in my name and place);
 - instruct and authorise any Attorneys to, on my behalf (and thus in my name and place), take any steps and do, on my behalf (and thus in my name and place), anything that that Attorney thinks is relevant, reasonable and lawful to try to achieve the Intended Outcomes; and
 - instruct and authorise any Attorneys to take, on my behalf (and thus in my name and place), any of the Authorised Actions and, on my behalf (and thus in my name and place), take any steps and do anything that the Attorney thinks is relevant, reasonable and lawful to try to achieve the Intended Outcomes;
- Without making the nomination, appointment and authority that I have given to Zenowethu under paragraphs 1 and 2 of this Power of Attorney any narrower, I specifically authorise Letsatsi:
 - to create a credit profile of Me, including my creditors, judgments, standing liabilities and my overall credit ratings and scoring;
 - to engage with my creditors to determine and agree full and final settlement amounts;
 - to receive certified balances of the amounts that I owe to my creditors;
 - to request or otherwise obtain a report in respect of Me from any registered credit bureau;
 - to institute any legal proceedings in my name so as to rescind any judgment, debt review order or garnishee order against Me;
 - to nominate and instruct, on my behalf, any firm of attorneys to act as my attorneys in any of the legal proceedings set out in paragraph 3.5 of this Power of Attorney above;
 - to receive, hold and deal with any amount received by Zenowethu on my behalf and to pay any of my creditors from that amount/s as Zenowethu believes is best;
 - to request and obtain from my bank/s the bank statements for my bank accounts for the 90 days that end on the day that I sign this Power of Attorney;
 - to perform, at any time while this Power of Attorney is in place, a credit search or a credit investigation into my credit status with any registered credit bureau, court or other institution;
 - to monitor, at any time while this Power of Attorney is in place, my payment behaviour by researching my credit record or credit status at any registered credit bureau, court or other institution;
 - to use, at any time while this Power of Attorney is in place, any information that it obtains from performing a credit search or credit investigation in respect of Me to do anything that is authorised to do under this Power of Attorney;
 - to use, at any time while this Power of Attorney is in place, any information that it obtains by researching my credit record to do anything that is authorised to do under this Power of Attorney;
 - if an Intended Outcome is achieved, to notify (or get any Attorney to notify) all relevant credit bureaus and other relevant institutions of that change in my credit history and my credit status; and
 - to, insofar as the law allows it to do so, receive and disclose my personal information, documents, credit profile information and/or any other credit information from or to:
 - any credit providers, credit bureaus, credit reporting agencies, courts or other relevant persons or entities; and
 - any law enforcement agencies that require the information for the prevention or investigation of criminal activities.
- I can only cancel this Power of Attorney by giving a written notice to Zenowethu that I have cancelled this Power of Attorney.

Signed at _____ on this the 21 day of October 2024

CUSTOMER:

AS WITNESS: 1. _____

SCHEDULE 7

LETSATSI FINANCE AND LOAN (PTY) LTD ("Letsatsi Finance")

REGISTRATION NO: 2004/029710/07 – NCRCP 895

AUTHORISATION FOR COMPANY PAYROLL / STOP ORDER DEDUCTION

I, the undersigned whose identity details are as follows:-

"The Employee"

Full Names:	Surname:
Identity Number:	Salary / Employee number:

Do hereby irrevocably authorise the payroll officer/ authorised officer of:-

"The Company"

Full Name & Registration Number of Employer:

To effect transfer from my salary of the amount equal to the monthly instalment as stipulated below and when the same falls due and is payable by Me to Letsatsi Finance and that such amount falling due shall be paid into the said bank account of Letsatsi Finance of which the details are stated below.

Bank Account Bank Account Details:

Beneficiary Name: Letsatsi Finance and Loan (Pty) Ltd
 Beneficiary Bank: Absa Bank
 Branch: Eastgate
 Branch Code: 632 005
 Account No: 404 9133 125
 Type of account: Cheque
 Client Ref No: Employee ID Number _____

Credit Repair Repayment Schedule Details:

Monthly Instalment: R _____ X _____ Months

First Date of the Instalment: Date _____ Month _____ Year _____

I hereby authorise the Company to deduct all amounts, according to the Credit Repair Repayment Schedule Detail above, due and owing or which may become due and owing by Me to Letsatsi Finance from my salary / wages and to pay such amounts into the above mentioned bank account of Letsatsi Finance, and to do so at all times for the full period set out under the Credit Repair Repayment Schedule Details above.

I agree and undertake to render all such assistance as may be necessary to Letsatsi Finance in order to give effect to the above. I hereby authorise the Company to give effect to this authorisation for the duration of the period set out under the Credit Repair Repayment Schedule Details detailed above for as long as I am employed by the Company until such time as the Company is notified in writing by Letsatsi Finance that all amounts payable by Me to Letsatsi are paid up in full.

I agree and understand that Letsatsi Finance has granted and / or will grant Me this service based on inter alia (among other things) the strength and security of this authorisation. I therefore undertake and agree to make no attempt to cancel this authorisation, until such time as all amounts that are due and payable, or which may become due and payable by Me to Letsatsi Finance have been paid in full.

I hereby authorise the Company to notify without delay Letsatsi Finance in the event of the termination of my employment with the Company for whatsoever reason. Upon termination of my employment, I further authorise the Company to deduct an amount equal to the combined total of all outstanding Credit Repair Repayment Schedule Details amounts that are owing by Me to Letsatsi Finance and to make that deduction from whatever amount is due to Me by the Company, and to effect immediate payment of the amount equal to that combined total of all my outstanding debt to Letsatsi Finance.

THUS SIGNED AT edenvale ON THIS 21 DAY OF (MONTH) 10 IN THE YEAR OF 2024

Signature of The Employee: _____

Witness: _____

I / We, the undersigned, duly authorised representative/s of the Company, hereby acknowledge and agree to give effect and to accept the above authorisation according to the terms and conditions as stipulated above.

I / We specifically agree to notify Letsatsi Finance of any attempt to cancel and / or change the above authorisation by the Company and in the case of the employment of the employee with the Company being terminated for whatever reason.

Signature of Authorised Company representative:

Full Name & Surname: _____

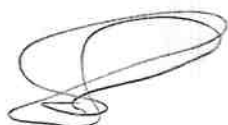
Capacity: _____

Telephone Number: _____

Email Address: _____

Official Company stamp

Letsatsi Finance Contact Details	
Branch Name:	
Staff Name:	
Branch Tel:	
Fax:	
Email:	
Client Number:	
Reference Number:	
Confirmation with Company Representative when returned:	
Branch Manager Confirmed:	
Date:	



REPUBLIC OF SOUTH AFRICA
NATIONAL IDENTITY CARD

Surname: **MBALUKANI**
 Names: **STEPHEN**
 Sex: **M**
 Nationality: **RSA**
 Identity Number: **8802075746082**
 Date of Birth: **07 FEB 1988**
 Country of Birth: **RSA**
 Status: **CITIZEN**



Signature: 

Conditions:
 This card has been issued by the
 Department of Home Affairs in terms of the
 Identification Act, Act 68 of 1997.
 If found please return to the Department of Home Affairs.
 For enquiry or verification purposes contact 0800 80 11 30

Date of Issue: **12 MAY 2014**

RSA

000459770





Letsatsi Finance and Loan FSP 43543

FICA

Original Sighted

Employee Name Obakeng Segale
 Name of Branch Federvab
 Date 21/10/2024
 Signature 